

Privacy in the Information Age

Surveillance, Data, and the Boundaries of the Self

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Before We Begin: Open Your Settings

Guess first. How many apps on your phone are currently allowed to see your **location**? How many can use your **microphone**?

Now count them:

- iPhone: *Settings* → *Privacy & Security* → *Location Services*
- Android: *Settings* → *Location* → *App location permissions*

The interesting number is not the count

It is how many you **would not have been able to name** before you looked — and how many of those you agreed to on purpose, in a moment you can actually remember.

Commit before we go on

Whose guess was furthest off? Was the class biased **high or low** — and what does a systematic error in one direction tell us about how the consent was obtained?

Central Questions

- What is privacy, and why does it matter?
- Do we have a “right” to privacy? If so, where does it come from?
- How has information technology transformed privacy?
- When (if ever) is surveillance justified?
- Is privacy a universal value, or culturally contingent?

Discussion

What's the last thing you did to protect your privacy online?

Connections to Previous Lectures

Lecture 1 (History): The telegraph, telephone, and early internet each prompted new surveillance debates. Privacy conflicts trace the same liberation-then-control pattern as every other IT revolution.

Lecture 2 (Virtues): Surveillance changes behavior even when unobserved—the *chilling effect*. Does constant monitoring undermine the intellectual and moral virtues Aristotle valued?

Lecture 4 (IP): Data as a resource: platforms collect personal data to personalize ads and content. How does data collection relate to IP, ownership, and the enshittification dynamic?

Lecture 5 (Crypto): Cryptocurrency was partly designed to protect financial privacy. Is financial surveillance relevantly different from communications surveillance?

Discussion

Is privacy a universal human value, or is it culturally contingent? Could you make the case either way?

Part I: Understanding Privacy

Part II: A History of IT and Privacy

Part III: IT Surveillance in Authoritarian States

Part IV: Surveillance Debates in Liberal Democracies

What Is Privacy? Defining the Concept

Defining Privacy

Privacy is surprisingly difficult to define precisely:

- “The right to be let alone” (**warren_brandeis_privacy**)
- Control over information about oneself
- **Contextual integrity** (Helen Nissenbaum) (**nissenbaum_privacy_context**):
Information flows appropriate to context

Key distinctions: Privacy $\neq$ Secrecy $\neq$ Anonymity (related but distinct)

Key insight: Privacy is not about having something to hide—it’s about maintaining boundaries between self and world.

Types of Privacy (Taxonomy)

Type	Description	Example Violation
Informational	Control over personal data	Data breach exposing records
Physical/Spatial	Freedom from bodily intrusion	Warrantless search
Decisional	Autonomy over personal choices	Reproductive restrictions
Communications	Private correspondence	Wiretapping
Associational	Freedom to associate privately	Membership list disclosure
Intellectual	Private thoughts and beliefs	Compelled speech

Different privacy types may require different protections.

Discussion

Which type of privacy do you value most?

Why Privacy Matters—Instrumental Arguments

Privacy Serves Important Functions

1. Privacy provides space for **autonomy**—room to develop our identities without external pressure.
2. Selective sharing creates **intimacy**; we build relationships by choosing what to reveal.
3. **Democracy** depends on privacy: anonymous ballots, confidential sources, and dissent.
4. Privacy offers **security** against identity theft, stalking, and discrimination.
5. It maintains **power balance**—asymmetric surveillance enables abuse.

Quote

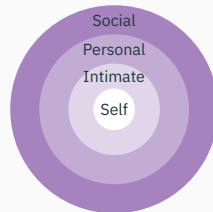
“Arguing that you don’t care about privacy because you have nothing to hide is like arguing you don’t care about free speech because you have nothing to say.” — Edward Snowden

Why Privacy Matters—Intrinsic Arguments

Privacy may have value *beyond* its consequences:

- Being observed without consent is degrading—privacy protects **dignity**.
- The “self” requires private boundaries; privacy is constitutive of **personhood**.
- Privacy acknowledges persons as ends, not means, expressing **respect**.

James Rachels (**rachels_privacy**): Privacy enables us to maintain different relationships with different people.



Privacy Zones

US Privacy Law: A Patchwork Approach

- **4th Amendment:** Protection against unreasonable searches
- **Griswold v. Connecticut** (1965): Privacy implied by “penumbras”
- **Katz v. United States** (1967): “Reasonable expectation of privacy”
- **Third-party doctrine:** Info shared with third parties loses protection

Sectoral approach: HIPAA (health), GLBA (finance), COPPA (children), FERPA (education)

Key gap: No comprehensive federal privacy law (unlike EU)

Legal Foundations—International Comparison

Jurisdiction	Approach	Key Law	Max Penalty
EU	Comprehensive right	GDPR (2018)	4% global revenue
USA	Sectoral, patchwork	Various (HIPAA, etc.)	Varies by sector
China	State control priority	PIPL (2021)	5% revenue
California	Consumer rights	CCPA/CPRA	\$7,500 per violation

GDPR features: Right to erasure, consent requirements, data portability

Largest GDPR fine: €1.2 billion to Meta (2023) for illegal data transfers

Discussion

Should the US adopt GDPR-style comprehensive protections?

Where Does the Right to Privacy Come From?

1. **Natural rights:** Privacy inherent to human dignity (Kantian)
2. **Utilitarian:** Privacy maximizes overall welfare
3. **Social contract:** Privacy necessary for civil society
4. **Property rights:** Personal data as property (Lockean)
5. **Relational:** Privacy constitutes relationships (**rachels_privacy;**
nissenbaum_privacy_context)
6. **Feminist critique:** “Personal is political”—privacy can hide abuse

Key tension: Privacy as *protection* vs. privacy as *concealment*

Skeptical Views: Is Privacy a Distinct Right?

Judith Jarvis Thomson's Reductionist Challenge (thomson_privacy)

Thomson argued that “privacy” is not a distinct right at all—it can be fully explained by other rights we already recognize.

The argument in standard form:

1. Every privacy violation can be redescribed as a violation of property rights (entering your home) or bodily rights (touching you without consent).
2. If privacy violations are always also violations of these other rights, privacy adds nothing new.
3. Therefore, “privacy” is just a cluster concept, not a distinct right.

Response: Critics argue Thomson misses cases where no property or bodily right is violated—such as watching you through a telephoto lens from public property, or aggregating your public data into a profile.

Skeptical Views: The Economic Critique

Richard Posner's Economic Argument (posner_privacy)

Posner argued that privacy is often economically inefficient because it enables people to conceal information others have legitimate interests in knowing.

The argument in standard form:

1. Efficient markets require accurate information about participants.
2. Privacy allows people to hide negative information (health conditions, past behavior, debts).
3. Such concealment distorts decisions and creates inefficiencies.
4. Therefore, strong privacy protections impose social costs.

Response: This view treats people as mere economic actors and ignores power imbalances—the employer learns everything about you; you learn little about them. Privacy can *correct* market failures by preventing irrelevant discrimination.

The “Nothing to Hide” Argument

The most common objection to privacy: “If you have nothing to hide, you have nothing to fear.”

Two quick problems, to sit with for now:

- **Everyone has something to hide**—not crimes, but legal matters that are nobody else’s business. “Nothing to hide” quietly equates privacy with guilt.
- **Aggregation:** individually harmless facts combine into a revealing profile. **solove_understanding_privacy** argues this is where the real damage happens—no single disclosure looks like a violation.

This argument is important enough to deserve a careful treatment. We will put it in standard form and examine each premise in Part IV, once we have the surveillance cases on the table.

The Privacy Paradox

The Paradox

People say they value privacy but act as if they don't.

Evidence: Studies show high stated concern, yet people readily share data for small conveniences.

Possible explanations:

- Privacy decisions are too complex to evaluate rationally (**bounded rationality**)
- We favor immediate gratification over abstract future harm (**temporal discounting**)
- Many feel resigned: “Privacy is dead anyway”
- Often there's no real alternative—take it or leave it

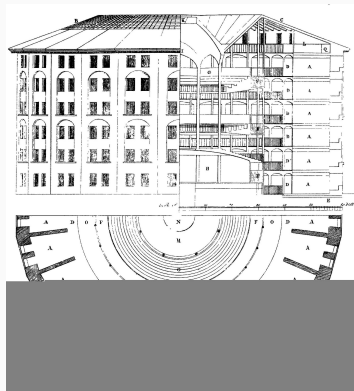
Discussion

Do your privacy behaviors match your stated privacy preferences?

The Panopticon: Architecture of Surveillance

Jeremy Bentham's Design (1791)

- A circular prison: one guard in a **central tower** can watch every cell
- Prisoners **cannot tell** when they're being watched
- So they **internalize** the gaze—self-regulating even when unobserved
- Foucault used it to analyze **modern power** in *Discipline and Punish* (1975)



Panopticon floor plan, from Jeremy Bentham, *Works* (1843). Public domain.

Discussion

Is **social media** a kind of panopticon—where the audience is both the watcher *and* the watched?

Case Study: The “Right to Be Forgotten”

Google Spain v. AEPD (2014)

Mario Costeja González: Wanted old newspaper links about debt removed from Google search results.

EU Court ruling: Individuals can request removal of “inadequate, irrelevant, or excessive” information.

Now in GDPR Article 17: The “right to erasure”

Scale: Google has received **2+ million removal requests** since 2014

Tensions: This ruling pits privacy against free speech and press freedom, and raises questions about memory versus forgetting in the digital age. The EU and US take fundamentally different approaches.

Discussion

Should people be able to erase their digital past?

Lecture Outline

Part I: Understanding Privacy

Part II: A History of IT and Privacy

Part III: IT Surveillance in Authoritarian States

Part IV: Surveillance Debates in Liberal Democracies

Pre-Digital Privacy Concerns

Privacy concerns predate computers:

- **1890:** Warren & Brandeis “The Right to Privacy” (**warren_brandeis_privacy**)—response to photography and tabloid journalism
- **1928:** *Olmstead v. United States*—wiretapping (Brandeis dissent)
- **1949:** Orwell’s *1984*—totalitarian surveillance state
- **1960s:** Government databases spark concern (Social Security numbers)
- **1970:** Fair Credit Reporting Act—first major US data privacy law
- **1974:** Privacy Act—governs federal agency records

Key insight: Each new technology triggers new privacy concerns.

The Computer Revolution (1970s–1980s)



1973 HEW Report: Established **Fair Information Practice Principles** (FIPPs):

- Notice, Choice, Access, Security, Enforcement

1978 FISA: Created secret court for surveillance warrants

1986 ECPA problem: Stored communications >180 days get less protection (outdated assumption)

The Internet Age (1990s–2000s)

- **1991:** World Wide Web transforms information sharing
- **1995:** EU Data Protection Directive—comprehensive approach
- **1998:** COPPA—children's online privacy
- **1999:** Gramm-Leach-Bliley Act—financial privacy
- **2001:** USA PATRIOT Act—expands surveillance post-9/11
 - Section 215: Bulk collection of phone metadata
 - National Security Letters without judicial oversight

New technologies emerge: Cookies, web tracking, behavioral advertising

The Social Media Era (2004–2012)

- **2004:** Facebook launches
- **2006:** Twitter; Facebook goes public
- **2007:** iPhone—smartphones ubiquitous
- **2010:** Facebook privacy policy controversies
- **2011:** Location tracking scandals

Business model: “If it’s free, you’re the product”

Platform	Data Types
Facebook	Posts, location, contacts
Google	Searches, emails, YouTube
Amazon	Purchases, Alexa, browsing

Data collected (indefinite retention)

Case Study: The Snowden Revelations (2013)

Edward Snowden: NSA Contractor Turned Whistleblower

Key revelations:

- **PRISM:** Direct access to tech company servers
- **Upstream collection:** Tapping fiber optic cables
- **Bulk phone metadata:** Section 215 collection
- **XKeyscore:** “Nearly everything a user does on the Internet”

Impact: Global debate, USA FREEDOM Act (2015), encryption push

Current status: Snowden received Russian citizenship (2022), remains in Russia

Ongoing debate: Hero or traitor?

The NSA: Inside the Surveillance State

National Security Agency

- Founded in **1952**—its very existence was classified for decades
- Headquarters at **Fort Meade, Maryland**; largest employer of mathematicians in the US
- Post-9/11: authority dramatically expanded under the **PATRIOT Act**
- Snowden revealed it collected **bulk phone metadata** on millions of Americans with FISA court approval
- Annual budget: \$10–15 billion (classified)



NSA Headquarters, Fort Meade, Maryland. US Government photo. Public domain.

Case Study: Cambridge Analytica (2018)

The Data Harvesting Scandal

What happened: Political consulting firm harvested **87 million** Facebook profiles via personality quiz app “This Is Your Digital Life”—collected data from users AND their friends.

Use: Psychographic profiling for targeted political ads (Brexit, 2016 US election)

Consequences:

- Mark Zuckerberg testified before Congress.
- The FTC levied a \$5 billion fine—the largest ever for privacy at the time.
- The scandal accelerated GDPR implementation (May 2018).
- Public awareness of data practices increased dramatically.

Lesson: “Move fast and break things” meets democracy

The Current Landscape (2020s)

New technologies:

- AI and machine learning power facial recognition and predictive systems.
- The Internet of Things puts sensors in our homes, on our bodies, and in our cars.
- Biometric identification now extends to faces, voices, and DNA.
- Generative AI systems train on vast troves of personal data.

COVID-19 impact: Contact tracing, health passports, remote work surveillance

Data Broker Stats

Market size (est., 2026)	\$300B+
Registered in California	581
Identified across 5 states	~750
Attributes per US consumer	1,500+

Treat the market-size figure carefully: it comes from commercial research reports that disagree with each other by about 20% and define “data broker” loosely. That an industry this large cannot be measured to better than a fifth is itself part of the problem.

The Attention Economy and Surveillance Capitalism

Shoshana Zuboff's Framework (zuboff_surveillance_capitalism)

1. **Human experience** as raw material for data extraction
2. **Behavioral surplus**: Data beyond service improvement → prediction products
3. **Prediction products** sold to business customers (advertisers)
4. **Behavioral modification**: Nudging users toward desired outcomes
5. **Instrumentarian power**: Shaping behavior at scale

Quote

“Surveillance capitalism unilaterally claims human experience as free raw material for translation into behavioral data.”

Lecture Outline

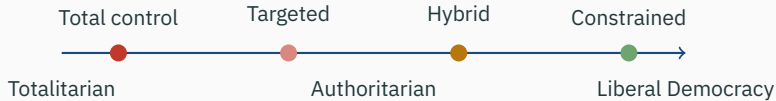
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Surveillance and Regime Type



Key insight: Technology has made comprehensive surveillance far cheaper and more effective than ever before.

Central Question

Can liberal democracies use these technologies without becoming authoritarian?

China—The Surveillance State Model

The Most Comprehensive Surveillance System in History

- **1.4 billion people**, world's largest population
- **Social Credit System**: often portrayed in the West as one unified “citizen score”—in reality a patchwork of blacklists, local pilots, and regulatory records
- **600–700 million CCTV cameras** nationwide (estimates vary widely)
- **Great Firewall**: Blocks Google, Facebook, Twitter, foreign news
- **Real-name registration**: Required for internet, phone, transit

Social Credit in practice (Daum; MERICS):

- Court **judgment-defaulter blacklists** do bar named individuals from flights, high-speed rail, and some jobs—but by court order, not an algorithmic score.
- Local point-scoring pilots existed; most were scaled back. **The surveillance is real; the unified “score” mostly isn’t.**

China—Facial Recognition and AI

System	Function	Scale
Skynet/Sharp Eyes	Urban camera network	600M+ cameras
Golden Shield	Database integration	1.4B citizens
Great Firewall	Internet censorship	All traffic
Social Credit	Behavior scoring	National

AI capabilities:

- These systems can identify faces in crowds and track individuals across cities.
- Some claim to detect suspicious behavior through “emotion recognition” and gait recognition—though the science is dubious.
- Integration of cameras with phones, apps, and payments creates comprehensive tracking.

Tech exporters: Huawei, Hikvision, SenseTime, Megvii

Case Study: Xinjiang and the Uyghurs

Surveillance-Enabled Persecution

Xinjiang Uyghur Autonomous Region: ~12 million Uyghur Muslims

Mass detention: 1+ million detained in “re-education camps” (2017–present);
~500,000 currently in prisons/detention (2025 estimate)

Surveillance intensity:

- In some areas, checkpoints appear every 100 meters.
- Residents must install mandatory smartphone apps and submit to DNA collection.
- The IJOP predictive system flags “suspicious” behaviors—including praying, traveling abroad, or having certain contacts.

International response: US sanctions on Hikvision, genocide determinations by US, UK, Canada, EU Parliament

Lesson: Technology enables persecution at unprecedented scale

Russia—Selective Surveillance and SORM

SORM: System of Operative-Investigative Measures

- Requires ISPs to install FSB monitoring equipment
- Real-time access **without judicial warrant**
- SORM-1 (phones), SORM-2 (internet), SORM-3 (all communications)

Russia's system is less comprehensive than China's but highly targeted:

- Primary targets include political opposition, journalists, activists, and LGBTQ+ individuals.
- Moscow alone has over 200,000 facial recognition cameras.
- Since the 2022 Ukraine invasion, the crackdown has intensified—spreading “false information” now carries a 15-year sentence.

Cases: Alexei Navalny tracked extensively; Memorial liquidated (2021)

Other Authoritarian Surveillance States

Country	Key Systems	Primary Targets
Iran	Internet shutdowns, SIAM	Protesters, women, minorities
Turkey	ByLock prosecutions	Gülenists, Kurds, journalists
Hungary	Pegasus spyware	Journalists, opposition
Saudi Arabia	Pegasus, social media	Dissidents, women activists
UAE	Pegasus, ToTok app	Dissidents, foreign residents
Belarus	Russian tech, facial rec.	Protesters, opposition

Common thread: Commercial spyware enables surveillance without building own capabilities

Case Study: The Pegasus Spyware Scandal

NSO Group's "Lawful Intercept" Tool

Pegasus: Spyware sold to governments for "terrorism and crime"

Capabilities: Full smartphone access—messages, calls, camera, mic, location

Zero-click exploits: No user action required for infection

2021 Pegasus Project revelations:

- **50,000+ phone numbers** on leaked target list
- 180+ journalists in 20+ countries targeted
- Jamal Khashoggi's fiancée's phone infected *after* his murder
- 14+ heads of state targeted (including Macron)

Customers: Mexico, Saudi Arabia, UAE, Hungary, India, Morocco, others

US response: NSO Group blacklisted (2021)

Belt and Road Includes Surveillance

- **Safe City projects:** Huawei systems in 100+ countries
- **Training:** China trains foreign officials in “internet management”
- **Recipients:** Zimbabwe, Venezuela, Ecuador, Pakistan, Philippines, many African nations

Concerns:

- Technology transfer enables local authoritarianism.
- Data may flow back to Beijing.
- Recipient countries become dependent on Chinese tech ecosystems.
- The practice normalizes mass surveillance globally.

Key Patterns

1. Multiple overlapping systems create **comprehensiveness**—no single point of failure.
2. Linking databases builds complete profiles through **integration**.
3. AI enables surveillance at a scale impossible with human monitors.
4. Gradual expansion normalizes what would once have been unthinkable.
5. Self-censorship occurs even without direct enforcement—the **chilling effect**.

The authoritarian toolkit: Internet shutdowns, content filtering, real-name registration, facial recognition, location tracking, spyware, social credit

Discussion

At what point does surveillance cross from “security” to “control”?

From Authoritarianism to Democracy: Could It Happen Here?

Key differences:

- Democratic accountability and elections
- Independent judiciary
- Free press that can investigate
- Civil society and advocacy groups
- Constitutional protections

Reasons for concern:

- Same technologies are available
- Post-9/11 expansion of surveillance
- Limited oversight has been documented
- Mission creep is common
- Democratic norms can erode

Quote

The question is not whether democracies *would* build authoritarian surveillance systems—it's whether the tools they build for legitimate purposes could *become* such systems under different leadership.

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The Core Tension



The “balance” framing is itself contested

Traditional framing: Security vs. Liberty tradeoff

Alternative framing: False dichotomy—privacy *enables* security (from abuse of power)

Question: How do we evaluate surveillance in democracies?

Core Claims

Proponents argue surveillance is necessary for security, justice, and public safety:

- Surveillance deters crime through visibility.
- Surveillance helps solve crimes by providing evidence for prosecution.
- Surveillance can prevent terrorism by identifying threats before attacks.
- Public spaces carry no reasonable expectation of privacy anyway.

Let's examine one of these arguments more carefully...

The Deterrence Argument (Standard Form)

Argument for Surveillance

1. Deterring crime protects public safety, a legitimate government interest.
2. Surveillance deters crime: people behave better when they know they're watched.
3. If surveillance deters crime and deterring crime is legitimate, then surveillance is justified.
4. Therefore, surveillance is justified.

Critique

Premise 2 is empirically weak: Studies on CCTV show mixed results. A 2019 meta-analysis found cameras reduce vehicle crime in parking lots but show “no significant effect” on violent crime.

Premise 3 assumes proportionality: Even if surveillance provides *some* benefit, the argument doesn't show the benefit outweighs the costs (chilling effects, mission creep, abuse potential).

The Case AGAINST Surveillance

Core Claims

Critics argue surveillance threatens liberty, equality, and democracy:

- Surveillance creates chilling effects—people self-censor when watched.
- Surveillance creates dangerous power asymmetries between state and citizen.
- Surveillance systems inevitably expand beyond their original purpose.
- Surveillance technologies encode and amplify existing biases.

Let's examine one of these arguments more carefully...

The Chilling Effects Argument (Standard Form)

Argument Against Surveillance

1. A free society requires citizens can speak, associate, and explore ideas without fear.
2. When people know they're watched, they self-censor—avoiding controversial speech, associations, and searches, even legal ones.
3. Mass surveillance means people are (or believe they are) always watched.
4. Therefore, mass surveillance undermines the conditions necessary for a free society.

Response

Empirical challenge: Do chilling effects occur at scale? Post-Snowden studies found measurable decreases in terrorism-related searches, suggesting the effect is real.

Targeting response: Supporters argue *targeted* surveillance (with warrants) avoids mass chilling effects while preserving security benefits.

The “Nothing to Hide” Argument (Standard Form)

The Argument

1. Surveillance only harms people who have something to hide.
2. Law-abiding citizens have nothing to hide.
3. Therefore, law-abiding citizens are not harmed by surveillance.
4. Therefore, law-abiding citizens should not oppose surveillance.

Multiple Problems

- **Premise 1 is false:** chilling effects, power imbalances, errors and abuse harm the innocent too.
- **Premise 2 is misleading:** everyone has legal but private matters to hide; the premise conflates privacy with guilt.
- **Ignores aggregation:** innocuous data points combine into sensitive profiles.
- **Ignores context:** what is appropriate in one setting is a violation in another—**contextual integrity**.
- **Assumes static law:** today’s legal behavior may be tomorrow’s crime—and who decides what is “wrong”?
- **Ignores distribution:** surveillance falls hardest on marginalized groups.

Schneier (schneier_data_goliath): “The real choice is liberty versus control.”

Facial Recognition—The Debate

Pro Arguments

- Identifies suspects, missing persons
- Faster than manual review
- Real-time response capability

Con Arguments

- Higher error rates for darker skin, women
- Face is public—permanent ID
- Chilling effect on protest
- No consent mechanism

ACLU study: 28 members of Congress falsely matched to mugshots

Status: Bans in San Francisco (2019, first US city), Boston, Oakland, 16+ municipalities

Case Study: Clearview AI

The Controversial Facial Recognition Company

Database: Roughly **50 billion** scraped facial images—up from 3 billion when the company was first exposed in 2020

Product: App for police to identify anyone from a photo

Customers: 2,400+ law enforcement agencies; federal contracts with ICE, CBP and the Army run through 2026

Legal battles:

- Fined €30.5M (Netherlands), €20M each (France, Italy, Greece), £7.5M (UK)—and has largely **not paid**
- Banned in Australia and Canada
- The Illinois class action settled for a **23% equity stake** rather than cash; an appeals court vacated that settlement in 2026

Company claim: “First Amendment right” to collect public photos

Discussion

Should police be able to identify anyone, anywhere, anytime?

You Be the Judge: The Attorney General's Options

You are your state's **attorney general**. Clearview has scraped tens of billions of images, your residents' faces among them, and sells identification to police. Four options on your desk:

1. **Sue** under state biometric-privacy law and seek to bar the company entirely
2. **Negotiate** a consent decree: use permitted, but only for violent felonies, with a warrant
3. **License** it for your own state police, on the theory that the database exists either way
4. **Nothing** — this is Congress's problem, not yours

Pick one and defend it

Fines across several countries have already gone largely **unpaid**. Given that, which option does the most good — and which sets the **worst precedent** for the next company that does this?

Using Data to Predict Crime

Place-based: Predict crime hotspots (PredPol, HunchLab)

Person-based: Predict who will commit/be victim of crime (Chicago “heat list”)

Criticisms:

- **Feedback loops** emerge: police go where predicted → more arrests → more predictions for that area.
- Systems trained on historically biased enforcement data reproduce that bias.
- The **pre-crime problem**: are we punishing predicted future acts?
- Proprietary algorithms can't be challenged in court—an **opacity** problem.
- Limited evidence these systems actually reduce crime.

Case: Los Angeles ended PredPol (2020) after bias concerns

Workplace and Consumer Surveillance

Workplace monitoring:

- Keystroke logging, screenshots
- Productivity scoring
- Location tracking
- Amazon “time off task”
- Remote work: Webcam, mouse tracking

Stats: 80% of major companies monitor employees

Key point: Government isn't the only surveillor—private companies too

Consumer surveillance:

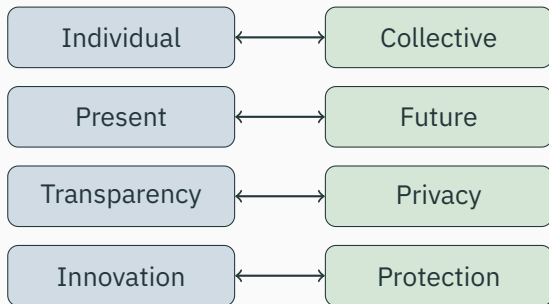
- Smart home devices (Alexa recordings reviewed by humans)
- Connected cars (location, driving)
- Insurance apps (health tracking)
- Retail facial recognition

Possible Frameworks for Democratic Surveillance

Constraints for Democratic Surveillance

1. Warrants should be required with meaningful **judicial oversight**.
2. The public should know what systems exist—**transparency**.
3. Data should only be used for specified purposes—**purpose limitation**.
4. Collect only what's necessary—the principle of **minimization**.
5. Data should be deleted after a set period—**retention limits**.
6. Record who accesses what data—**audit trails**.
7. There must be real consequences for misuse—**accountability**.
8. Programs should expire without reauthorization—**sunset clauses**.

Privacy in the Balance—Key Tensions



These tensions cannot be fully “resolved”—they must be navigated case by case.

Key Concepts i

Warren & Brandeis (“The Right to Privacy,” 1890) coined the phrase “the right to be let alone”—the first systematic legal argument for privacy as an individual right, prompted by invasive newspaper photography.

Helen Nissenbaum’s **contextual integrity** framework: privacy is not about secrecy but about appropriate information flows. A violation occurs when information moves to a context where it doesn’t belong (e.g., medical data shared with employers).

The chilling effect : surveillance changes behavior even when no one is being watched. The mere possibility of observation inhibits speech, association, and political dissent.

The third-party doctrine (US law): information voluntarily shared with a third party (bank, phone company) loses Fourth Amendment protection. Digital life makes this doctrine cover almost everything.

GDPR (EU General Data Protection Regulation, 2018): the most comprehensive privacy law to date. Key principles: data minimization, purpose limitation, right of access, right to erasure (“right to be forgotten”).

Surveillance capitalism (Shoshana Zuboff): the business model of harvesting behavioral data to predict and modify human behavior for profit—going beyond mere data collection to behavioral modification.

Discussion

Where do you draw the line? What surveillance, if any, is acceptable in a free society?

